upon the completion of his sentence, an advocate filed a petition on behalf of Singh at the Allahabad High Court, seeking his immediate release. The petition was premised on the argument that Singh's imprisonment was illegal as he was offered no opportunity to defend himself after he was reprimanded, and that the assembly lacked the authority to commit him to prison.

Singh's petition first arose for hearing at the high court at 2 p.m., before a bench of two judges – Justices Nasirullah Beg and G.D. Sehgal. Singh's advocate – B. Solomon – appeared on his behalf, while K.N. Kapur, an assistant government advocate, represented the state government. It was agreed that the hearing should proceed an hour later on the same day. However, when the case arose for hearing at 3 p.m., Kapur did not show up and the government remained unrepresented. Kapur was thought to be briefing the secretary to the judicial department of the Uttar Pradesh government about developments in the court at the time. It was not clear whether his failure to return to the court in time was by accident or design. Based on the facts and arguments presented by Solomon, the high court ordered that his client be released on bail, subject to conditions – including that Singh attend court at every future hearing.

The first reaction of the bureaucracy in Uttar Pradesh was to treat this as they would any other case. It was suggested that the government appear at the next hearing of the case and file affidavits in the usual way. However, the speaker of the assembly's reaction to the order was not quite as sanguine. The speaker, himself a lawyer, perceived the court's approach as contrary to the separation of powers. One of the ways in which the separation of powers among the legislature, executive and judiciary was meant to be sustained was by allowing each branch autonomy in the exercise of its core functions, without interference from the others. In the speaker's view, the high court's order undermined the assembly's exclusive authority to address a breach of its own privileges.

The speaker went a step further, indicating that those directly associated with the order – including Singh, Solomon, and Justices Beg and Sehgal – had breached the privileges of the assembly. It was just as well that others,